Institution **University of Chicago Law School**
Course **W21-Con Law I-Baude-TAKEHOME**

Event **NA**

Exam Mode **TAKEHOME**

Exam ID [redacted]

Count(s)	Word(s)	Char(s)	Char(s) (WS)
Section 1	**1500**	**7880**	**9370**
Section 2	**600**	**3236**	**3830**
Section 3	**883**	**4722**	**5604**
Total	**2983**	**15838**	**18804**

Answer-to-Question-_1_

1.Current Doctrine

Congressional Power

Before we reach the question of whether this delegation is permissible, we first have to determine whether Congress *itself* would have the ability to legislate in this area, since Congress surely can't delegate an authority it doesn't have. Because the Act contemplates regulations that are "necessary to prevent human activities from changing the global climate," we have to ask (a) whether preventing climate change is a "legitimate end" under one of Congress's enumerated powers (*McCulloch)* and (b) whether the Act involves a "great and substantive independent power" (*Sibelius).* Although the language is vague, using the canon of constitutional avoidance, I think we have to assume that (a) the ultimate "end" of the Act is regulating commerce, and preventing climate change is simply the policy *objective* that the regulations are designed to achieve; and (b) that the regulations would not involve coercing private citizens to take *proactive* steps to help the environment by requiring them to, say, plant trees (*Sibelius).* Moreover, because the Act would fall under the "substantial effects" category of the commerce power, we have to assume that it is only meant to cover economic activities (*Lopez).* Still, under *Raich,* this just means that the statute has to regulate a "class" of activity that involves "the production, distribution, or consumption of commodities." And since energy itself is a commodity (it's traded on markets), if we put this all together, we can conclude that Congress has the ability to regulate any *class* of activity that in some way involves the consumption of energy, so long as that activity (in the aggregate) has a substantial effect on interstate commerce. That's a fairly broad sweep, so I think Congress has considerable regulatory power here.

Delegation

Since the Act most likely falls within Congress's constitutional powers, Congress can delegate its power to the the Executive so long as it provides an "intelligible principle" for the EPA to follow. The principle of "preventing climate change" is no less intelligible than others the Court has upheld, e.g. "protect[ing] the public health" or setting "fair and equitable prices" (cited in *Gundy*). And it's narrower than the "in the public interest" principle from *Schechter Poultry,* since it focuses on a particular *sphere* of public interest, i.e., the environment. So I think it passes muster.

Appointment and Removal

Since this regulation gives the EPA a considerable amount of power over citizens substantial rights, I assume this would make the head of the EPA a superior "officer of the United States" requiring Senate approval, if they aren't already (*Buckley).* And this complies with the default assumption from *Myers* that the President can remove an executive officer at-will.

Tax

The first question is whether this is a tax or a penalty in disguise. Applying the factors in *Bailey* (as articulated in *Sibelius*): (1) I'd have to know how much carbon dioxide the average business and/or consumer emits in order to determine whether the burden is excessive, but it seems reasonable enough; (b) there's no mens rea requirement; and (c) even though the fees are collected by the EPA, they are presumably being *used as revenue* to finance the EPA's regulatory goals by, e.g., building wind turbines. If that's the case, then this falls under Congress's taxing power. The problem, however, is that the fees are neither uniform (since people in WV are exempted) nor apportioned, so the only logical possibilities are that this is an income tax or an example of the elusive "indirect tax." I don't think this can be stylized as an income tax, since it has nothing to do with income, and the concept of an "indirect tax" has not been adequately developed. So either the exemption has to go, and this will be characterized as a uniform excise, or this is a direct tax, and it has to be apportioned somehow (*Pollock).*

2.Ideal Doctrine

Constitutional Interpretation

My general view is that the Constitution ought to be interpreted in a way that realizes the spirit of the document, i.e. the kind of Government it was meant to create, as evidenced by the values that are (1) explicitly articulated in the Preamble, (2) expounded elsewhere by the Framers in their political writings, and (3) implicit in the principles underlying the specific institutions the Constitution originally designed. To be clear: I don't claim that this method of interpretation yields anything like a precise mathematical formula that "spits out" only one answer. Far from it. But I do think this is the only way that the Constitution can be interpreted such that its binding authority over us is morally justified. I also think it's good for a democracy to have our most important questions settled by public debates that ask us to explicitly confront our deepest values, rather than by arcane definitions or arbitrary feats of technical gymnastics. The remainder of this memo will apply these interpretive principles to the issues at hand.

Commerce Clause

Based on my comments above, it's perhaps unsurprising that I think the Court's attempt to define the scope of the Commerce Clause by introducing an endless stream of meaningless words (to modify the existing set of meaningless words) is exasperating and insipid. I think the best justification for the Commerce Power is that a Union where states are constantly engaged in hostile competitive practices against one another was bound to fail. In other words, Congress has to be able to regulate the interstate market in order to keep the Union from going to war with itself or dissolving over trade disputes. This means that the Commerce Clause should be interpreted to cover anything that would constitute hostile interstate competition that would cultivate ill will among the states. Therefore, even if climate change does *happen* to have a substantial effect on interstate commerce, Congress still can't regulate it unless the way

that states are dealing with climate change absent federal regulation is somehow hostile. I don't know enough about environmental policy to say one way or the other, but I'm inclined to think this does *not* fall within the proper scope of Congress's power under the Commerce Clause.

Delegation

Even if Congress *did* have the power to regulate environmental policy in general (i.e. not through taxes--see below), this delegation would still be unconstitutional. Although the Court has somehow managed to avoid defining Executive vs. Legislative power, I think, at a minimum, the distinction has to correspond to the distinction between facts and values, respectively. When we're figuring out how to accomplish a specific task, it makes sense to ask experts to determine the optimal way to execute the task, based on their empirical knowledge. But the justification for giving Congress "Legislative" power is that the people should be able to determine their own policy goals and priorities, through their elected Representatives, in accordance with *their* personal value judgments. All of this is to say: the principle of delegation should be more than just "intelligible." It needs to lay out a scheme for prioritizing (and/or quantitatively weighing) competing policy goals, e.g., between reducing climate change and sustaining economic growth, which the current statute does not even come close to doing.

Removal Power

I'd want to do more background reading, but this doctrine seems fine to me.

Taxing Power

I agree with *Sebelius* that Congress can pursue policy objectives through taxation that it can't otherwise achieve through regulation (i.e. making it "illegal" to do X by attaching socially-recognized punishments). In fact, I think *Bailey* is clearly inconsistent with the spirit of the Constitution, which specifically says that Congress can levy taxes "to provide for the...general welfare." It's very peculiar that the Court effectively adopted Hamilton's interpretation of the "general welfare" clause as it relates to spending but Madison's interpretation as it relates to taxation. I don't see any defensible reason for this.

General Welfare

Relatedly, I think it's a mistake that the Court has basically given up on reading "general welfare" as a substantive requirement that can and should limit an otherwise broad taxing *and* spending power. I agree with the spirit of Rutherford's argument in the Savannah Fire debate: unlike Hamilton, I don't think the term "general" is supposed to modify how taxes are apportioned or spending is allocated among the *States,* since the Constitution is adopted by the "People" and concerns *their* welfare. Cf. *McCulloch* (explaining that the federal government's powers are for the *people's* benefit, not for the *States'* benefit). I think the "general welfare" requirement is best understood as mandating that revenue be used in a way that could plausibly be described as utilitarian, i.e., serving the collective welfare of everyone in the nation. So the WV exemption might be an unconstitutional exercise of the taxing power--*irrespective of whether it's a direct tax or an excise*, since no one can figure out what those words mean anyway--if it's just a political

compromise to get the Bill passed and not a legitimate policy determination that one kind of welfare (climate health) should give way to another (e.g., job security).

WC: 1500

----------ANSWER-1-ABOVE----------

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----------ANSWER-2-BELOW----------

Answer-to-Question-_2_

1.*McGrain* Test: Legislative Purposes

Congress has the power to issue subpoenas in order "to obtain information for legislative purposes," i.e. to investigate subjects "on which legislation could be had." (*McGrain)*. (Note: Although legislation has to ultimately be *passed* by both Houses, there's no *Chadha* problem with a one-house subpoena, since legislation can still *originate* in one House, so presumably the Houses can engage in fact-finding independently as well.) This raises the following three questions: (I) Can Congress pack the Court?; (II) Can Congress impeach the Justices for this kind of behavior?; and (III) If so, would these actions be "legislative"?

(I) Despite the erstwhile Senate Judiciary Committee's desire to "set a salutary precedent that can never be violated" (Adverse Report on S.1392), as we discussed in class, there's at least a colorable case to be made that Congress *can* constitutionally change the number of Justices via federal statute. And there's no constitutional requirement that Congress be bound by normative commitments it articulated in a Committee Report almost a century ago.

(II) Hamilton's standard, laid out in the precedent established by the Impeachment of Justice Chase, is that judges can be impeached for "an abuse or violation of some public trust." Even if we take the highly charitable position that the seances themselves are not a violation of the public trust (insofar as they are a crazy way to try to uphold the constitution), at the very least, the fact that the Justices have been lying about this "methodology" to the public in their opinions (by purporting to rely on *this*-worldly materials to uncover the original meaning) is definitely a violation of public trust and thus impeachable behavior.

(III) Somewhat awkwardly, I think the question of whether either of these Congressional actions

would be "legislative"--and thus an appropriate subject for investigation via subpoena--is a non-justiciable political question under *Nixon.* First, the Article I language of "All legislative Powers" is at least as much of a "textually demonstrable commitment" to Congress as "sole Power" is to the Senate. Second, we have good reason to think that there are no "judicially manageable standards" for what constitutes "Legislative power," given that the Court has not managed to commit itself to any standards in over 200+ years of separation of powers jurisprudence. Therefore, I think we're forced to conclude that whether a particular power that Congress has is "legislative" is for them alone to decide. For our purposes, I guess that means Congress can, by default, issue subpoenas to research any potential action it has the constitutional authority to perform, subject to the *Mazars* limitation.

2. Inapplicability of *Mazars*

The purpose of *Mazars's* special test for Congressional subpoenas of Presidential effects is that Congress and the President "have an ongoing relationship as the 'opposite and rival' political branches" which the Court has to occasionally police. But it would be absurd to suggest that the Court should be coming up with standards to police its *own* relationship with Congress; if anything, the *President* should be the one doing that, by the same logic. Therefore, the *Mazars* test shouldn't apply to Judicial subpoenas.

If the test did apply, though, I think both subpoenas would still pass, since (a) the "legislative" purposes clearly involve the Justices; (b) the documents would probably supply relevant information about the misconduct; and (c) the burden on the justices is inconsequential. I just think (d) the personal documents should be omitted to fit the "narrow tailoring" requirement.

3. Standing

Finally, it's worth noting that the Justices might not even have standing to sue, since Dropbox is the one being subpoenaed. (*Levitt*)

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----------ANSWER-2-ABOVE----------

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----------ANSWER-3-BELOW----------

Answer-to-Question-_3_

The conventional wisdom we learned in class is that over the course of the twentieth century,

whatever limitations were initially placed on the powers of the President (vis-a-vis Congress) and the federal government as a whole (vis-a-vis the States) gradually eroded in favor of, respectively, an expanded role for the Executive branch and federal authority more generally. Put another way, in both cases, the narrative was that a technocratic "big government" has steadily triumphed over the libertarian "small government" originally envisioned by the Constitution and its earliest interpreters. But, looking at the cases in chronological order, it strikes me that another version of the story is at least as plausible: that contemporary judges and commentators have inaccurately romanticized the jurisprudence of the past as being far more libertarian and small government-oriented than it ever really was.

Contrary to the dominant narrative, the older cases that we read barely discussed "liberty" at all, and certainly not in the reverential way that modern cases do. Instead, they tend to focus on the role that the federal government was designed to play in securing happiness and other affirmative social ends. In *Marbury,* for instance, the Court describes the people's "original right to establish, for their future government, such a principle as, in their opinion, shall most conduce to their own happiness" as being "the basis [] on which the whole American fabric has been erected." Likewise, the Court in *McCulloch* emphasizes that the government is "entrusted with such ample powers, on the due execution of which the happiness and prosperity of the nation so vitally depends." More to the point, even the older cases that come down *against* expanded government and in favor of more conservative policy outcomes--e.g., *Pollock, Bailey, Hamer*--do not even *mention* the value of individual liberty, much less wax philosophical about it (at least in the portions we read).

Based on the timeline of cases, it seems like the "liberty rhetoric" gets going in earnest around the time of *Youngstown,* where we start to hear about concerns that "war and economic crises may upset the normal balance between liberty and authority" (Jackson, concurring). After that, it seems that every other case at least tries to pay lip service to the idea of liberty, even in circumstances where it seems out of place. All of a sudden, we learn that "[l]iberty is always at stake when one or more of the branches seeks to transgress the separation of powers" (Kennedy concurrence in *Clinton*); that "federalism secures to citizens the liberties that derive from the diffusion of sovereign power" (*Sebelius*); that "the Constitution divides authority between federal and state governments for the protection of individuals" (*Murphy,* quoting *Printz*);

that the separation of powers is "one of the most vital of the procedural protections of individual liberties found in our constitution" (Gorsuch dissent in *Gundy*); and that "[c]ontinued reliance on *Humphrey's Executor* to justify the existence of independent agencies creates a serious, ongoing threat to our Government's design," one that "subverts political accountability and threatens individual liberty" (Thomas dissent in *Seila Law*). These passages frequently invoke the Framers, but offer very few citations for these historical references, and occasionally mischaracterize the ones they do provide. (For example, in *Gundy*, Justice Gorsuch attributes the "there can be no liberty..." quote to James Madison in Federalist 47, even though Madison was actually citing a quote from *Montesquieu* about the *British* Constitution--in a discussion that was not about separation of powers, but rather about checks and balances.)

There are a number of possible explanations for this change in the Court's thinking over time. For one, I do think it mirrors a larger evolution in Western intellectual history away from Enlightenment certainty and towards post-War skepticism (and fear of totalitarianism). I'm sure the cultural climate of the Cold War-era may have contributed to this as well. Alternatively, perhaps the Court gradually began to import philosophical ideas from its substantive due process jurisprudence into its thinking about separation of powers and federalism. I should also acknowledge that there is a considerable risk of selection bias regarding the evidence I have at my disposal here. Since the readings in this class focused on major *developments* in constitutional law, it makes sense that we would *study* more earlier cases that prioritized welfare over liberty, and later cases that did the reverse, if what made all of those cases noteworthy was their departure from the existing status quo. For all I know, perhaps the vast majority of unremarkable cases from the nineteenth century were every bit as libertarian as contemporary dicta makes them out to be, and they just weren't worth studying because they were simply uninteresting for that very reason.

All of that being said, I do think this evidence might at least cause us to approach the new trend of jeremiads about the erosion of American liberty with a greater amount of skepticism, and to expect the Justices to actually demonstrate, rather than simply avow, that liberty was as paramount a feature of our early Constitutional thinking as they claim it was. Perhaps the liberty-lovers are right, and that liberty *ought* to play more of a starring role in our jurisprudence going forward. But we will need to hear a *normative* argument for this proposition, not just a nostalgic one.

WC: 883